

# U.P. Zila Panchayats Regularisation of Ad Hoc Promotions (On Posts within the Purview of the Public Service Commission) Rules, 1994

Source: <https://indiankanoon.org/doc/30670804/>

[Skip to main content](#)

[Legal Document View](#)

[Tools for analyzing structure and cite text of judgments](#)

[Unlock Advanced Research with](#)

[PRISM](#)

[AI](#)

Integrated with over 4 crore judgments and laws ? designed for legal practitioners, researchers, students and institutions

-

[Know your Kanoon](#)

-

[Doc Gen Hub](#)

-

[Counter Argument](#)

-

[Case Predict AI](#)

-

[Talk with IK Doc](#)

-

...

[Upgrade to Premium](#)

[Cites

0

, Cited by

0

]

State of Uttar Pradesh - Act

U.P. Zila Panchayats Regularisation of Ad Hoc Promotions (On Posts within the Purview of the Public Service Commission) Rules, 1994

UTTAR PRADESH

India

U.P. Zila Panchayats Regularisation of Ad Hoc Promotions (On Posts within the Purview of the Public Service Commission) Rules, 1994

Rule

U-P-ZILA-PANCHAYATS-REGULARISATION-OF-AD-HOC-PROMOTIONS-ON-POSTS-WITHIN-THE-PURVIEW-OF-THE-PUBLIC-SERVICE-COMMISSION-RULES-1994 of 1994

Published on 11 August 1994

Commenced on 11 August 1994

[This is the version of this document from 11 August 1994.]

[Note: The original publication document is not available and this content could not be verified.]

U.P. Zila Panchayats Regularisation of Ad Hoc Promotions (On Posts within the Purview of the Public Service Commission) Rules, 1994

Published vide Notification No. 550-B/33-2-94-200-G/88, dated 11th August, 1994

In exercise of the powers under Section 237 of the Uttar Pradesh Kshettra Panchayats and Zila Panchayats Adhiniyam, 1961 (U.P. Act

No. 33 of 1961

), the Governor is pleased to make the following rules :

1.

Short title, commencement and application.

(1)

These rules may be called the Uttar Pradesh Zila Panchayats Regularisation of Ad hoc Promotions (On Posts within the Purview of the Public Service Commission) Rules, 1994.

(2)

They shall come into force at once.

(3)

They shall apply to such posts in a Zila Panchayats as are referred to in sub-section (1) of Section 43 of the U.P. Kshettra Panchayats and Zila Panchayats Adhiniyam, 1961, within the purview of the Uttar Pradesh Public Service Commission.

2.

Effect.

- These Rules shall have effect notwithstanding anything to the contrary contained in any other rules or orders.

3.

Definitions.

- In these rules,-

(1)

"Appointing Authority" in relation to any post means the authority empowered to make appointments to such posts;

(2)

"Available vacancy" means a vacancy for which no candidate has been recommended by the Commission before the date of commencement of these rules;

(3)

"Commission" means the Uttar Pradesh Public Service Commission;

(4)

"Government" means the State Government of Uttar Pradesh;

(5)

"Governor" means the Governor of Uttar Pradesh;

(6)

"Zila Panchayat" means a Zila Panchayat established under Section 17 of the Uttar Pradesh Kshettra Panchayats and Zila Panchayats Adhiniyam, 1961.

4.

Regularisation of ad-hoc promotion.

(1)

Any person who-

(i)

was appointed by promotion on ad-hoc basis before January 1, 1985 and is continuing in service either on the post on which he was so promoted or on an equivalent or higher post on the date of the commencement of these rules;

(ii)

was eligible for regular promotion on the date of ad-hoc promotion;

(iii)

has completed or, as the case may be, after he has completed three years service on the post or posts, referred to in clause (1),

shall be considered for regular appointment by promotion in permanent or temporary vacancy as may be available on the basis of record and suitability before any regular appointment by promotion is made in such vacancy in accordance with the relevant service rules or orders.

(2)

In making regular appointment under these rules, reservation for candidates belonging to the Scheduled Castes, Scheduled Tribes and other categories shall be made in accordance with the Uttar Pradesh Public Services

(Reservation for Scheduled Castes, Scheduled Tribes and other Backward Classes) Act, 1994 and the Uttar Pradesh Public Services (Reservation for Physically Handicapped Dependents of Freedom Fighters and Ex-servicemen) Act, 1993, as amended from time to time.

(3)

For the purpose of the sub-rule (1), the Government shall constitute a Selection Board for all or any Zila Panchayats.

(4)

The appointing authority shall, having regard to the provisions of sub-rule (1), prepare an eligibility list of the candidates arranged in order of seniority, and place it before the Selection Board alongwith their character rolls and such other record, pertaining to them as may be considered proper.

(5)

The Selection Board shall consider the cases of candidates on the basis of the records, referred to in sub-rule (4).

(6)

The Selection Board shall prepare a list of selected candidates arranged in order of seniority and forward the same to the appointing authority.

(7)

Where in respect of a person, who is eligible for being considered for regularisation under these rules, a formal departmental inquiry is pending or there is an order of the Court on account of which or for any other reason it is not possible to make regular appointment by promotion of such a person. Selection Board shall place its recommendations in a sealed cover and shall mention this fact against the name of the concerned person in the list prepared under sub-rule (5).

5.

Appointment.

- Subject to the provisions of sub-Rules (2) and (7) of Rule 4 the appointing authority shall make appointment by taking the names of candidates in the order in which they stand in the list prepared under sub-rule (6) :

Provided that in the cases covered by the provisions of sub-rule (7) of Rule 4 the appointing authority shall act in accordance with the orders of the Government.

6.

Appointment deemed under relevant service rules.

- Appointment made under these rules shall be deemed to be an appointment under the relevant service rules or orders, if any.

7.

Seniority.

- Seniority of a person appointed under these rules, shall be determined in accordance with the relevant service rules or orders, regulating conditions of service of persons regularly appointed in the service or on the post.

8.

Reversion.

- Where a person promoted on ad-hoc basis, is not found suitable or whose case is not covered by sub-rule (1) of Rule 4 of these rules, he shall, at once be reverted to his substantive post from which, ad-hoc promotion was made and on such reversion he shall not be entitled to any compensation.

Explanation. - Where a person has been given more than one ad-hoc promotions, he shall be reverted to the substantive post from which first of such ad-hoc promotion was made.

Related AI tags, queries and research notes

Translation